



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

April 14, 2023

POLICE COMMISSIONER'S PENALTY DEPARTMENT

Re: CCRB Case No. 202200292 (Incident Date: October 28, 2021) regarding Sergeant Sherlon Cromwell, Tax No. 943116 (DADS No. 2023-27855)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter and determined that Sergeant Cromwell will receive no disciplinary action for the allegation of forcibly removing the complainant to the hospital. In this matter, Sergeant Cromwell was the assigned Desk Officer of the 34 Precinct when he ordered that an arrestee at the command be removed to the hospital for a mental evaluation. The CCRB opined that the removal was improper.

Sergeant Cromwell stated that the arrestee was belligerent, angry and verbally combative. Sergeant Cromwell stated that he attempted to calm the arrestee over several hours to no avail and that he believed that the arrestee, based on his behavior, was a danger to himself or would become a danger to other prisoners. Additionally, the arrestee refused to disclose that he was experiencing a serious medical emergency to Sergeant Cromwell.

The CCRB concluded that the decision by Sergeant Cromwell to have the arrestee medically evaluated was wrong. The CCRB supports their findings largely based on the fact that the responding EMT described the arrestee as being uncooperative but not physically combative and that the arrestee was later found to exhibit normal and thoughtful judgement at the hospital. In this matter, Sergeant Cromwell was required to make a decision about whether the arrestee posed a danger to himself or others, which was based on his own experience and training at that moment. If a removed individual is later found by trained medical personnel to not be a danger, it does not render the decision to remove the individual wrong.

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In this matter, there is no evidence to suggest that Sergeant Cromwell had the individual removed to the hospital as a retaliatory measure or simply because he refused to be fingerprinted. Rather, as stated by Sergeant Cromwell, after observing the individual for several hours, he believed the arrestee fit the definition of an emotionally disturbed person.

Therefore, based on the foregoing, Sergeant Cromwell will receive no disciplinary action for the alleged violation of Patrol Guide Procedure 221-13 (Mentally Ill or Emotionally Disturbed Persons).

Yours truly,

A handwritten signature in black ink, appearing to read 'L. Soto', with a long horizontal flourish extending to the right.

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office